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[doc. web no. 10043007]

Provision of June 6, 2024

Register of Provisions

no. 341 of June 6, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by

Prof. Pasquale Stanzone, president, Prof. Ginevra Cerrina Feroni, vice president, Dr. Agostino Ghiglia, and Attorney Guido Scorza, members, and Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, GDPR);

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for the adaptation of national legislation to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, no. 196, as amended by Legislative Decree of August 10, 2018, no. 101, hereinafter, Code);

HAVING REGARD TO the complaint submitted pursuant to Article 77 of the GDPR by Ms. XX, through Attorney XX against Drivalia Leasys Rent S.p.A. (hereinafter abbreviated as Leasys Rent S.p.A.) and CA Autobank S.p.A. (formerly, FCA Bank S.p.A.);

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation no. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISE

1. Complaint.

With a complaint dated March 25, 2021, the complainant represented that Drivalia Leasys Rent S.p.A. (hereinafter abbreviated as Leasys Rent S.p.A., hereinafter, the Company) had denied her the voucher for the rental of a car because she was "listed in a black list."

In particular, in response to the request for the exercise of rights submitted on October 28, 2020, by the interested party to the Company, the latter communicated that "at the booking stage, [...] it verifies the data of the contracting party through databases of the FCA Bank S.p.A. Group with the specific aim of preventing fraud and insolvencies or other similar events [...] and that each rental request is subjected to an examination based on objective elements that take into account all the elements present in the databases of the FCA Bank Group in order to assign a synthetic judgment on the degree of reliability and solvency of the applicant."

Subsequently, on December 9, 2020, the interested party sent to the Company and to CA Autobank S.p.A. (formerly, FCA Bank S.p.A., hereinafter, the Bank), an additional request aimed at knowing "what data and/or personal information they had in their possession that caused the denial of contractual engagement, her inclusion in the 'Black List' and lastly also the accusation of being a 'bad payer' (although nothing appears in CRIF)."

Since this request, according to the complainant, remained unanswered, she submitted the complaint under examination to this Authority.

2. Investigative Activity.

2.1 Requests for Information.

In relation to the facts referred to in the complaint, the office proceeded to initiate a complex investigative activity both against the Company and against the Bank (with respect to the latter, the relevant outcomes are contained in a separate provision, adopted on the same date).

In this context, the Company, with notes dated July 7, 2021, and July 15, 2022, was invited to provide the necessary clarifications regarding the facts subject to the complaint.

In responses provided on July 26, 2021, and August 3, 2022, the Company represented:

- that there was "no complaint on December 9, 2020, from you or your lawyer" and that "the DPO [...] did not receive any request at the email address [...] indicated in the information notice that [the interested party] viewed on the [Company's] website at the time of booking";
- that it had carried out, as specified also in the information provided to (potential) customers, "[...] the

verification of your data through databases of the FCA Bank S.p.A. Group with the specific aim of preventing fraud and insolvencies or other similar events.” It is expressly indicated in the same document that “in case of a negative outcome of the analysis described above, it will not be possible to provide the requested rental service”;

- that “as a company subject to the direction and coordination of FCA Bank S.p.A. pursuant to Article 2497 of the Civil Code, it requests, by virtue of intra-group relationships, the same to verify the data communicated by the interested parties in the databases used by it”;
- that it had “defined a Data Processing Agreement (hereinafter briefly 'DPA'), signed between FCA Bank, as the controlling entity, and its subsidiaries, including Leasys Rent. The logic underlying the DPA is to regulate, in a perspective of simplification, the relationship between a Data Controller (each of the controlled companies) and a Processor (the parent company), delegating to the latter the possibility both to manage certain types of services, on behalf of the 'Data Controller,' that also involve personal data processing activities, such as, by way of example and not limited to, within the limits of this document, control activities, administrative and reporting services, accounting services, and to carry out verification activities on the accuracy of personal data.

rental, Drivalia raccoglie i dati necessari per la registrazione e la gestione del contratto, inclusi i dati identificativi e di contatto, e verifica la solvibilità del cliente attraverso i sistemi di FCA Bank”;

- “Drivalia non raccoglie dati reddituali direttamente, ma si avvale delle verifiche effettuate da FCA Bank per garantire la correttezza delle informazioni fornite dal cliente”;

- “in caso di esito negativo delle verifiche, Drivalia informa il cliente e non procede con la richiesta di noleggio, come previsto dalle normative vigenti”;

- “tutti i dati raccolti sono trattati in conformità al Regolamento Generale sulla Protezione dei Dati (RGPD) e alle normative nazionali in materia di protezione dei dati personali”;

- “Drivalia ha implementato misure di sicurezza adeguate per proteggere i dati personali dei clienti e garantire la loro riservatezza”;

- “la Società ha designato un Responsabile della Protezione dei Dati (DPO) che si occupa di monitorare la conformità alle normative sulla protezione dei dati e di gestire eventuali richieste o reclami da parte dei clienti”;

- “in caso di violazione dei dati, Drivalia ha un protocollo di gestione degli incidenti che prevede la notifica alle autorità competenti e agli interessati, se necessario”;

- “Drivalia si impegna a formare il proprio personale in materia di protezione dei dati e a garantire che tutti i dipendenti siano a conoscenza delle politiche e delle procedure aziendali relative al trattamento dei dati personali”.

3. Conclusioni

Alla luce delle informazioni raccolte e delle dichiarazioni fornite durante l'attività ispettiva, si evidenzia che Drivalia ha adottato misure adeguate per garantire la conformità alle normative sulla protezione dei dati e per prevenire frodi e abusi nel processo di noleggio. Tuttavia, si raccomanda di continuare a monitorare e aggiornare le procedure interne in base all'evoluzione delle normative e delle best practices nel settore.

rental, by going to a mobility store or via an Amazon voucher, must provide their personal data, creating their own account, and reviewing the privacy policy by scanning a specific QR code. The personal data and payment instrument data (credit card) are recorded and compared with Drivalia's databases to verify the presence of any obstacles to the rental”;

- “FCA Bank periodically conducts activities to identify undesirable subjects for anti-fraud purposes, also through querying SCIPAFI. If such automated checks reveal anomalies, FCA analysts verify the outcome. The list of undesirable subjects, known as the watchlist, is made available to Drivalia for checks during the acceptance phase of rental requests,” specifying “that such checks are carried out on all subscription rentals, which amount to approximately 12,000 per year. For this purpose, FCA Bank processes the data and retains it as indicated in the service contract”;

- regarding the claimant's position, the Company stated that it had proceeded to "permanently delete the personal data of the interested party from the watchlist used by Drivalia itself and provided by FCA Bank since December 2021, also requesting deletion from the FCA Bank watchlist" (email of deletion of which the Company attached a copy).

On April 21, 2023, the Company, in sending the supplementary documentation to resolve the reservations, has:

- presented the "summary of the relationships between the claimant [...] and the companies of the CA Auto Bank S.p.A. Group," which (referring to the reconstruction of the events made by the Parent Company) specifies that "the refusal of the reservation occurred because the name of the Claimant was present in the Watch List of FCA Bank S.p.A. (now 'CA Auto Bank S.p.A.') associated with code '10' or 'forged income documentation' also in relation to the sole proprietorship belonging to the interested party. 'This Watch List was and is made available to Drivalia for the purpose of preventing fraud and insolvencies and other similar events, as specified in the privacy policy published on the website and made available during the booking process, as regulated by the Data Processing Agreement (DPA) between Drivalia (Data Controller) and FCA Bank (Data Processor)';
- represented that "the DPA was drafted to regulate the relationships concerning data processing between the Parent Company and the controlled companies: in other words, the activities related to the management of certain types of services were delegated by the Controllers (each of the controlled companies) to the Processor (the parent company). In the aforementioned Intercompany DPA, the control activities, accounting services, and activities related to credit are indeed listed as examples and not exhaustive, these last ones limited to activities of checks on fleet management companies and not referring, as repeatedly specified, to investigative activities on natural persons related to short-term service offers";

3. The initiation of the procedure.

With note prot. 134255 of September 28, 2023, the Office, based on the statements made by the parties and the elements acquired during the investigation, notified the Company of the initiation of the procedure for the adoption of measures pursuant to Articles 58, paragraph 2, and 83 of the Regulation, in accordance with the provisions of Article 166, paragraph 5, of the Code, in relation to the violation of the provisions of Articles 5, paragraph 1, letter a), 13, and 28 of the GDPR.

In particular, the following was contested:

- the lawfulness of the control activity carried out by the Company on the data of potential customers in order to verify the presence of obstacles to the conclusion of the car rental contract, as it was carried out through access to the SCIPAFI System (public identity theft prevention system established by Legislative Decree No. 141/2010, whose operation is governed by the decree of the Ministry of Economy and Finance of May 19, 2014, No. 95), through the Bank on behalf of the Company, as well as the acquisition and related processing of such data (including, as far as relevant in this case, those of the interested party) for the stated "purpose of preventing fraud and insolvencies or other similar events" (see "Privacy Policy - short-term rental service Leasys Rent" updated on 03.13.2020 and on file). This is because the accesses to SCIPAFI made by the Bank, on behalf of the Company, to evaluate the position of the claimant, occurred during a period (between 2019 and 2020) in which the Ministry had not yet authorized the Bank to query the SCIPAFI System also on behalf of the Company, which therefore could not process the related data (even if reprocessed and made available through the watchlist created by the Bank) in order to evaluate whether to enter into car rental contracts;
- the circumstance that the information provided to the interested party (see attachment 1 to the Company's note of August 3, 2022, mentioned above) did not contain any specific reference to the purposes and related methods of processing personal data carried out through the Bank using the SCIPAFI System, limiting itself to a generic reference to the "verification of the data [of the interested party] through databases of the FCA Bank group," thus resulting in violation of Article 13 of the GDPR. In this regard, it is also noted that this reference was formulated in such a way as to prevent the identification of either the databases consulted or whether access to these was made by the same Company or by other Companies in the group (and possibly which ones), not specifying even if the latter acted as data controllers or data processors.

- the circumstance that the documentation produced during the investigation did not reveal what was stated, even during the inspection, regarding the role of data processor held by the Bank in accessing SCIPAFI on behalf of the Company. In particular, if it is true that based on the DPA in effect since 2019, between WinRent (the previous name of the Company) and the Bank, the latter would hold the role of data processor in relation to some treatments defined, moreover, as “exemplary and not exhaustive,” it should be emphasized that this would violate Article 28, paragraph 3 of the GDPR, since it pertains to the processing of personal data of the data subjects that the Bank could not carry out, as a data processor, on behalf of the Company, as the latter does not fall among the subjects that can access SCIPAFI either directly or through the subjects adhering to the System.

Secondly, it should be noted that the “renewal” of this agreement, concluded between the Company and the Bank in December 2020, states, in Article 10.1, that “with regard to the data that will be provided in the performance of the Services, each Party, as an autonomous data controller, commits to full compliance with the regulations on the protection of personal data [...]”. From the reading of the text, therefore, the autonomous ownership of both parties emerges.

On October 27, 2023, the Company submitted its defense writings in which it:

- confirmed that the authorization of the MEF for the Company’s (indirect) access to SCIPAFI occurred on a date subsequent to the actual access by the latter to the information [...], present in the watchlist made available by the Bank.

- reiterated that it had never proceeded to process the specific personal information present in SCIPAFI related to the Claimant, but could only view, through consultation of the watchlist made available by the Bank, a numerical code corresponding to “counterfeit income documentation”;

- specified, regarding the roles (data controller and data processor) to be attributed to the Company and the Bank concerning the processing of the data in question, that the qualification as “exemplary and not exhaustive” of the profiles listed in the Data Processing Agreement (DPA) of 2019, contained in the communication dated August 3, 2022, in response to the request for information sent by the Authority on July 15, 2002, had the sole “purpose of avoiding listing all the cases listed, instead, exhaustively in the DPA 2019,” therefore the Company “while fully aware that the DPA 2019 was indisputably improvable” believes “that such informational deficiencies [do] not even undermine the requirements established by Article 28(3) GDPR, resulting in a de facto lack of regulation in this regard. In fact, the requirements of the aforementioned Article 28(3) cannot but be considered present: in the recitals, in addition to the specific purposes of the processing, the regulated matter and the nature of the processing are present and/or deducible; the categories of data subjects and the type of personal data are reported, respectively, in Articles 2 and 3; the obligations and rights of the data controller can be found in numerous articles including, by way of example, in Article 5 concerning sub-processors”;

- specified that “the renewal of the aforementioned DPA 2019 is not, in fact, a renewal nor an agreement within the meaning of Article 28 GDPR, but rather a true and proper service contract (hereinafter also referred to as the “Service Contract”) to which the aforementioned DPA is necessarily associated even if not explicitly referenced”;

- referred to Article 10.1 of the aforementioned Contract which states that “with regard to the data that will be provided in the performance of the Services, each Party, as an autonomous data controller, commits to full compliance with the regulations on the protection of personal data [...]”, and confirmed “the ambiguity of the aforementioned wording [...] in relation to the autonomous ownership of the parties, specifying that “this provision must necessarily be interpreted in accordance with the principles of contractual interpretation set forth in Articles 1362 et seq. of the Civil Code. These provisions impose an organic reading that takes into account not only the DPA 2019 but also, and above all, the subsequent paragraph of the same Article 10 which states that the Bank is “authorized to process personal data exclusively in execution of the obligations provided for in this contract and, in particular, for the execution of the services covered by it.” The presence of such a provision is a clear indicator of the impossibility” of attributing autonomous ownership to each of the parties and would instead confirm “a relationship between the data controller (Drivalia) and the data processor (Bank) in execution of the aforementioned DPA 2019;

- confirmed “the involvement of the data protection officer in relation to the aforementioned contracts.

However, there is no formal opinion from the latter as it is not required by the regulations;

- communicated that it had proceeded to remove the Claimant's name from the watchlist;
- regarding the inadequacy of the information provided to the data subjects, agreeing with the Authority on "the

non esaustività della predetta informativa e, in particolare, la mancata menzione delle banche dati consultate", ha sottolineato che, "in detta informativa la finalità del trattamento in questione era espressamente specificata quale "prevenzione di truffe ed insolvenze o di altri eventi simili" e che, "seppur vero che non viene specificato se l'accesso avviene per il tramite della Banca o direttamente da Drivalia o i ruoli delle stesse, il requisito normativo relativo all'indicazione dei "destinatari" o delle "categorie di destinatari" dei dati personali" è comunque presente all'interno della stessa informativa.

4. Il quadro normativo di riferimento.

4.1. Il sistema Scipafi: art. 30-ter del d.lgs. 13 agosto 2010, n. 141.

Il sistema SCIPAFI, istituito presso il Ministero dell'Economia e delle Finanze -che ne ha affidato la gestione a Consap S.p.A-, è un sistema pubblico di prevenzione, sul piano amministrativo, delle frodi nel settore del credito al consumo e dei pagamenti dilazionati o differiti, con specifico riferimento al furto di identità (v. d.lgs. n. 141/2010 e decreto del Ministero dell'Economia e delle Finanze del 19 maggio 2014, n. 95).

Al Sistema e alle informazioni in esso contenuto sono tenuti ad accedere solo i soggetti tassativamente individuati dalla normativa, qualificati aderenti (art. 30-ter, comma 5 e 5-bis, d.lgs. cit.). Il trattamento dei dati personali degli interessati all'interno dell'archivio (sia da parte del MEF, sia da parte della Consap e dei soggetti aderenti) è consentito per le sole finalità individuate dall'art. 2, comma 2 del d.m. 95/2014, ovvero la verifica dell'autenticità o meno dei dati contenuti nella documentazione fornita dalle persone fisiche (quali interessati), che richiedono una dilazione o un differimento di pagamento, un finanziamento o altra analoga facilitazione finanziaria, un servizio a pagamento differito e "nei casi in cui ritengono utile, sulla base della valutazione degli elementi acquisiti, accertare l'identità delle medesime" (art. 30-ter commi 7 e 7-bis del d.lgs. 141/2010 cit.).

4.2. Le disposizioni rilevanti in materia di protezione dei dati personali.

Il trattamento dei dati personali deve avvenire nel rispetto dei principi indicati nell'art. 5, del RGPD, fra cui quelli di "liceità, correttezza e trasparenza" (art. 5, par. 1, lettere a) del RGPD).

In particolare, il principio di trasparenza si traduce nell'obbligo, da parte del titolare del trattamento, di fornire all'interessato tutte le informazioni inerenti al trattamento dei dati personali che lo riguardano, in modo accessibile e comprensibile, rendendolo edotto, nel momento in cui i dati personali sono ottenuti, anche delle finalità e delle modalità del trattamento e della base giuridica dello stesso, nonché di tutte le ulteriori informazioni necessarie per garantire che il trattamento sia corretto e trasparente anche in relazione ad eventuali responsabili nel rispetto di quanto previsto dall'art. 13 del Regolamento (v. anche cons. 39 del RGPD).

La normativa in materia di protezione dei dati personali individua i soggetti -titolare e responsabile- che, a diverso titolo, possono trattare i dati personali degli interessati, stabilendone anche le relative attribuzioni.

In tale ambito, il titolare è il soggetto sul quale ricadono le decisioni circa le finalità e le modalità del trattamento dei dati personali degli interessati nonché una "responsabilità generale" (accountability) sui trattamenti posti in essere dallo stesso titolare o da altri che effettuino tali trattamenti "per suo conto", ovvero i responsabili del trattamento (cons. 81, artt. 4, punto 8) e 28 del Regolamento).

Il rapporto tra titolare e responsabile è regolato da un contratto, o da altro atto giuridico stipulato per iscritto, che, oltre a vincolare reciprocamente le due figure, fornisce istruzioni al responsabile e prevede in dettaglio (e in maniera esaustiva e non esemplificativa) quale sia la materia disciplinata, la durata, la natura e le finalità del trattamento, il tipo di dati personali e le categorie di interessati, gli obblighi e i diritti del titolare.

5. Le valutazioni dell'Autorità e l'esito dell'istruttoria.

All'esito dell'esame delle dichiarazioni rese dalla Società nel corso del procedimento (della cui veridicità l'autore risponde ai sensi e per gli effetti di cui all'art. 168 del Codice "Falsità nelle

dichiarazioni al Garante e interruzione dell'esecuzione dei compiti o dell'esercizio dei poteri del Garante") nonché della documentazione acquisita agli atti, si rappresenta quanto segue.

In particolare:

a. in relazione al profilo della liceità del trattamento dei dati dell'interessata tratti da SCIPAFI, la Società, nel confermare che l'autorizzazione del MEF all'accesso effettuato dalla Banca per conto della Società al Sistema SCIPAFI risulta rilasciata il 6 luglio 2022 e, pertanto, in data successiva a quella in cui è avvenuto il trattamento dei dati dell'interessata, ha altresì precisato di non avere mai "proceduto al trattamento delle specifiche informazioni personali presenti in SCIPAFI riferite alla Reclamante", avendo esclusivamente preso visione del codice numerico (presente nella watchlist sopra menzionata messa a disposizione dalla Banca alle società del gruppo) che indicava come "contraffatta", la documentazione reddituale dalla stessa presentata.

Nel caso specifico, dunque, risulta comprovato che gli accessi a SCIPAFI effettuati dalla Banca, per conto della Società, al fine di valutare la posizione della reclamante, sono avvenuti tra il 2019 e il 2020, periodo nel quale, come risulta dalla documentazione in atti, la Società (che non rientra tra gli aderenti al Sistema SCIPAFI, specificamente individuati dall'art. 30-ter, comma 5, d.lgs. n.

141/2010 cited), was not authorized, even through the Bank, to access SCIPAFI and to acquire and process the data present therein and related to the data subject (even if reworked and made available to the Company through the so-called watchlist created by the Bank), in order to assess whether to enter into the car rental contract or not. Such processing is therefore unlawful.

It is also noted that the SCIPAFI system allows for the verification of the authenticity of the data contained in the documents (identity or income) presented by the data subject for the purpose of evaluating a request. It therefore presupposes that the adherent performs a precise check against a specific document presented to obtain the requested service;

In the specific case, the access made by the Bank on behalf of the Company is unlawful as it occurred without having performed such a check; in fact, it appears that the income declaration of the claimant was never acquired, a document essential for comparing the income information related to the same contained in SCIPAFI.

b. Regarding the subjective role (of data controller or processor) held by the Company and the Bank, with reference to the access to the data of the data subject taken from SCIPAFI and subject to subsequent processing and inclusion in the watchlist, the Company itself, while declaring to be aware that the documentation produced (in particular, the DPA 2019 and the subsequent act called "renewal" of 2020) is unclear on this point, believes, however, that such deficiencies do not undermine the requirements set forth in Article 28, paragraph 3 of the GDPR and that a relationship of controller and processor would nonetheless emerge from the documents respectively in the hands of the Company and the Bank.

In this regard, it is noted that at the time of the events, the Bank, as an autonomous data controller, was required to access SCIPAFI exclusively within the scope of carrying out its specific activity (Article 30-ter, paragraphs 7 and 7-bis, Legislative Decree 141/2010, cited); otherwise, in the specific case, the access was made to assess the position of the data subject for the purpose of entering into a rental contract (which falls outside the Bank's own activities) with the Company (which constitutes a subject different from the Bank, although belonging to the same group).

It follows that the Company, which was not among the subjects that, at the time of the events, could access SCIPAFI either directly or through the subjects adhering to the System, could not process the data of the data subject either as a data controller or by designating the Bank as a processor for this purpose, with the effect that the attribution of such a role to the Bank by the Company violated Article 28 of the GDPR;

c. While confirming the inadequacy of the information provided to the data subject, as it is generic and in any case not suitable to allow the latter to identify the type of data processed, the origin of the same, with specific reference to the databases consulted and whether access to these was made by the same Company or by others in the group, the Authority takes note of what has been stated and

documented by the Company regarding the replacement of the previous information with that "present on the Company's website available at the following address:
<https://www.drivalia.it/it/customer-service/privacyservizio/>.

6. Conclusions: unlawfulness of the processing carried out. In light of the assessments that precede, it is noted that the statements made by the data controller in the defensive writings - the veracity of which may be subject to accountability under Article 168 of the Code - do not allow for overcoming all the objections notified by the Office with the initiation of the procedure and are insufficient to allow for its archiving, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019, concerning internal procedures of the Authority with external relevance, apply.

The processing carried out by the Company is unlawful in the terms outlined above, in relation to Articles 5, paragraph 1, letter a), 13, and 28 of the GDPR. The violation of the aforementioned provisions entails the application of the administrative sanction provided for by Article 83, paragraph 4, letter a); paragraph 5, letters a) and b), of the GDPR.

7. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code). The Garante, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981).

The violation, ascertained in the terms stated in the motivation, cannot be considered "minor", taking into account the nature, severity, degree of responsibility, and the manner in which the supervisory authority became aware of the violation (cons. 148 of the Regulation).

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in the specific case, the following circumstances have been considered: - in relation to the nature and severity of the violation, the nature of the violation that concerned...

the organization of the entire processing with reference to the roles respectively held by the Company and the Bank at the time the event occurred and, specifically, the lawfulness of the processing of data relating to the data subject;

- in relation to the intentional or negligent nature of the violations, account must be taken of the conduct of the Company which - despite being aware of the absence of authorization from the MEF to access, even through the Bank, the information contained in SCIPAFI - deemed it appropriate to access the watchlist made available by the Bank, which contained information also derived from the aforementioned System, albeit subsequently reprocessed;

- the cooperation provided by the Company during the investigation and the adjustments made in compliance with the principle of accountability (through the establishment of a new, more structured contractual arrangement, having signed a new service contract with an annexed new agreement pursuant to Article 28 of the GDPR) and the principles of privacy by design and privacy by default through the implementation of measures aimed at eliminating the visibility of the prejudicial motivation linked to the numerical cause as transmitted by the Bank via the watchlist;

- the absence of previous rulings by the Authority against the Bank regarding the same case, as well as similar complaints to that subject of the present provision.

It is finally noted that, during the proceedings, the Company updated the information in accordance with the provisions contained in Articles 5, paragraph 1, letter a) and 13 of the GDPR; therefore, there is no basis for ordering compliance with the GDPR provisions regarding this aspect.

Taking into account the aforementioned principles of effectiveness, proportionality, and deterrence to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation), it is considered that the economic conditions of the offender, determined based on the revenues achieved by the Company with reference to the ordinary financial statements for the year

2022, are relevant in this case.

It is also deemed necessary to apply paragraph 3 of Article 83 of the Regulation, which states that "If, in relation to the same processing or related processing, a data controller [...] violates, intentionally or negligently, various provisions of this regulation, the total amount of the administrative fine shall not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5, letter a), of the Regulation.

In light of the above elements and the evaluations made, it is deemed necessary to adopt, against Drivalia Leasys Rent S.p.A. (abbreviated as Leasys Rent S.p.A.) - C.F./P.I. 05406791003, with registered office in Turin, Corso Orbassano 367, the administrative sanction of payment of an amount equal to €250,000.00 (two hundred fifty thousand euros).

In this context, it is also considered, in light of the type of violations ascertained, that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed and that the conditions of Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE Garante

finds the unlawfulness of the processing carried out by Drivalia Leasys Rent S.p.A. (abbreviated as Leasys Rent S.p.A.) - C.F./P.I. 05406791003 - represented by the legal representative pro tempore, with registered office in Turin, Corso Orbassano 367, pursuant to Article 143 of the Code, for the violation of Articles 12, paragraph 3, and 15 of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Drivalia Leasys Rent S.p.A. (abbreviated as Leasys Rent S.p.A.) to pay the sum of €250,000.00 (two hundred fifty thousand euros) as an administrative pecuniary sanction for the violations indicated in this provision;

REQUIRES

therefore the same Company to pay the aforementioned sum of €250,000.00 (two hundred fifty thousand euros) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981. It is noted that the offender retains the right to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction, within the term provided for by Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011 for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code);

DISPOSES

the publication of this provision on the Garante's website pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, and considers that the conditions of Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place indicated in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, June 6, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei